

One of the named parties in the Plaintiffs complaint is Firstplus Financial, Inc., the named beneficiary in the previously recorded deed of trust. Plaintiff had previously served this entity by substitute service, on CT Corporation System, claiming this was the agent for service of process for Firstplus Financial, Inc. here in California. Plaintiff admits it has now learned that this entity is actually *not* the designated agent of First Plus Financial, Inc. **Therefore, based on the Court's own motion, and with the acquiescence of the Plaintiff, the Default of Firstplus Financial, Inc., filed May 9, 2024, is hereby vacated.** Based upon Corporations Code § 17701.16(c), and the Plaintiff's filed declarations detailing efforts to serve Firstplus Financial, Inc., the Court finds good cause to GRANT Plaintiff's ex parte application to allow substitute service on the Secretary of State as to this named defendant. Plaintiff has filed a proposed order which will be executed.

Based on the foregoing, the Court hereby continues today's Review Hearing to **Monday, May 5, 2025 at 9:00 a.m. in Department 64** for status of service and/or defaults on all parties. No appearance is necessary on today's calendar.

IN RE NOEL

Case Number: 24PB-0032752

Tentative Ruling on Petition to Approve Minor Compromise: This matter is on calendar for hearing on a Petition for Approval of Compromise of Claim. Petitioner is Gabriell Marie Noel, the mother of minor Nilsa Louise Noel. Probate Code § 3500 permits a parent to settle a claim for a minor so long as the claim is not against the parent and the petitioner is (1) Either parent if the parents of the minor are not living separate and apart or (2) The parent having the care, custody, or control of the minor if the parents of the minor are living separate and apart. It appears that the mother would qualify as the petitioner under at least option 2, however, the Court will inquire at the hearing.

California Rule of Court, Rule 7.950 states that a petition for court approval of a minor's compromise must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise. The Petition contains the necessary information. The Court notes this is not an expedited petition brought on Judicial Council Form MC-350EX. See CRC Rule 7.950.5. Therefore, hearing on the petition is required before approval. The person seeking approval of the settlement on behalf of the minor and the minor are required to appear at hearing, unless good cause is presented for their non-appearance. CRC Rule 7.952. The Court will direct Counsel to voir dire Petitioner regarding the following: the authority to act under Prob. Code § 3500(a); the terms of the settlement; and whether the Petitioner understands that once approved, the settlement is final and binding on the minor. Once satisfied, the Court intends to grant the Petition. If granted, the Court will execute the Order and schedule a hearing for review regarding confirmation of filing a verified copy of the annuity contract. **An appearance by the Petitioner and the minor is necessary on today's calendar.**

IN RE: OAKES

Case Number: 24CV-0206142

Tentative Ruling on Petition for Change of Name: Petitioners Aubry Oakes and Rebekah Oakes seek a name change for their minor daughter. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated, and the file closed upon the processing of the Decree Changing Name.